
5th VOX ANATOLIS MOOT COURT COMPETITION, 2026

Before

THE HON'BLE SUPREME COURT OF INDRAVANA
(Original Jurisdiction)
SUIT UNDER ARTICLE 131 OF THE CONSTITUTION OF INDRAVANA

IN THE MATTERS OF:

State of Pragyam..... Plaintiff

v.

State of Lumira..... Respondent

~MEMORIAL ON BEHALF OF RESPONDENTS~

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III. WHETHER, IN THE ABSENCE OF A CONSTITUTED TRIBUNAL UNDER THE INTER-STATE RIVER WATER DISPUTES ACT, 1956, THE UNION’S INACTION AND LUMIRA’S UNILATERAL CONSTRUCTION OF THE THALEN MULTIPURPOSE PROJECT VIOLATE THE CONSTITUTIONAL PRINCIPLES OF COOPERATIVE FEDERALISM GOVERNING INTER-STATE RIVER WATERS?

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STATEMENT OF JURISDICTION

The Respondent most respectfully submits that the present suit has been instituted before this Hon'ble Court under **Article 131 of the Constitution of Indravana**.

Article 131 vests exclusive original jurisdiction in this Hon'ble Court in any dispute:

(a) between the Government of India and one or more States; or

(b) between the Government of India and any State or States on one side and one or more other States on the other; or

(c) between two or more States,

insofar as the dispute involves any question (whether of law or fact) on which the existence or extent of a legal right depends.

The present dispute, having arisen between the State of Pragyam and the State of Lumira, both constituent States of the Republic of Indravana, has been brought before this Hon'ble Court invoking its original jurisdiction under the aforesaid provision.

The Respondent respectfully submits to the jurisdiction of this Hon'ble Court.

STATEMENT OF FACTS

-HISTORICAL BACKGROUND OF THE DISPUTED CORRIDOR-

1. The present dispute concerns the Rinlai–Tharun Corridor, a region situated along the boundary between the State of Lumira and the State of Pragyam.
2. The boundary in this region traces its origin to colonial-era demarcations, including survey references and administrative records dating to 1904 and 1933.
3. These historical demarcations, though recorded in official documents and maps of the time, have subsequently been interpreted differently by the successor States.
4. Upon independence and the constitutional reorganisation of States, the territories presently forming Lumira and Pragyam inherited these boundary descriptions.
5. However, certain segments of the corridor continued to reflect ambiguity in alignment, resulting in competing territorial interpretations.
6. The lack of a conclusively implemented ground demarcation contributed to the persistence of the dispute.

-POST-REORGANISATION ASSERTIONS AND ADMINISTRATIVE PRESENCE-

7. Following reorganisation, both Lumira and Pragyam exercised administrative functions in areas proximate to the disputed corridor.
8. Each State relied upon its respective understanding of historical records and survey materials to assert jurisdictional authority.
9. Over time, overlapping claims in certain pockets of the corridor gave rise to disagreements concerning governance, land regulation, and enforcement powers.
10. These differences periodically resulted in tensions between the States, particularly in relation to the exercise of administrative control in the disputed area.
11. Notwithstanding such tensions, the broader constitutional framework governing inter-State relations continued to operate.

-NOVEMBER 2020 STATUS QUO UNDERSTANDING-

12. In November 2020, in light of increasing tensions and with a view to maintaining peace and stability in the region, the authorities of Lumira and Pragyam arrived at a Status Quo Understanding.
13. The understanding was intended to preserve existing conditions in the disputed corridor pending resolution of the boundary disagreement.

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14. It contemplated restraint by both States and sought to prevent unilateral measures that could aggravate the situation.
 15. The arrangement functioned as a confidence-building mechanism designed to ensure that the dispute did not escalate while discussions and processes toward resolution remained ongoing.

-ISSUANCE OF NOTICES AND EVICTION OPERATIONS BY PRAGYAM-

16. Subsequent to the November 2020 Status Quo Understanding, the State of Pragyam issued forest and land-use notices concerning areas falling within the disputed corridor.
17. These notices pertained to regulatory classification and administrative control of land in the region.
18. Thereafter, Pragyam undertook eviction operations in certain portions of the corridor pursuant to its regulatory framework.
19. The eviction measures involved removal of occupants from lands identified under its asserted jurisdiction.
20. These actions were undertaken while the boundary dispute remained unresolved and while the Status Quo Understanding continued to subsist.

-OBJECTIONS RAISED BY LUMIRA AND INSTITUTION OF PROCEEDINGS-

21. The State of Lumira objected to the issuance of forest and land-use notices and to the eviction operations conducted by Pragyam.
 22. Lumira maintained that such actions disturbed the existing position in the disputed corridor and were inconsistent with the November 2020 Status Quo Understanding.
 23. The disagreement between the parties consequently crystallised into a constitutional dispute involving questions concerning territorial jurisdiction, legal rights, and inter-State obligations.
 24. In view of the unresolved controversy and the alleged disturbance of the status quo, the present suit has been instituted before this Hon'ble Court under Article 131 of the Constitution.
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ISSUES RAISED

-ISSUE I-

WHETHER THE SUIT UNDER ARTICLE 131 IS MAINTAINABLE IN A DISPUTE INVOLVING INTER-STATE BOUNDARY DETERMINATION UNDER ARTICLES 3 AND 4, AND WHETHER PARLIAMENT'S INACTION PERMITS ADJUDICATION BY THIS HON'BLE COURT.

-ISSUE II-

WHETHER, IN THE ABSENCE OF A CONSTITUTED TRIBUNAL UNDER THE INTER-STATE RIVER WATER DISPUTES ACT, 1956, THE UNION'S INACTION AND LUMIRA'S UNILATERAL CONSTRUCTION OF THE THALEN MULTIPURPOSE PROJECT VIOLATE THE CONSTITUTIONAL PRINCIPLES OF COOPERATIVE FEDERALISM GOVERNING INTER-STATE RIVER WATERS?

-ISSUE III-

WHETHER ENFORCEMENT OF THE INNER LINE PERMIT REGIME AGAINST OFFICIALS AND RESIDENTS OF PRAGYAM VIOLATES PRINCIPLES OF FREEDOM OF MOVEMENT AND EQUALITY BEFORE LAW?

-ISSUE IV-

WHETHER THE ACTIONS OF PRAGYAM IN ISSUING FOREST AND LAND-USE NOTICES AND UNDERTAKING EVICTION OPERATIONS VIOLATED THE NOVEMBER 2020 STATUS QUO UNDERSTANDING?

SUMMARY OF ARGUMENTS

I. WHETHER THE SUIT UNDER ARTICLE 131 IS MAINTAINABLE IN A DISPUTE INVOLVING INTER-STATE BOUNDARY DETERMINATION UNDER ARTICLES 3 AND 4, AND WHETHER PARLIAMENT'S INACTION PERMITS ADJUDICATION BY THIS HON'BLE COURT.

It is most humbly submitted that the present suit is not maintainable under Article 131 of the Constitution and the issue of boundary determination remains within the exclusive competence of Parliament. *Firstly*, the dispute in substance concerns inter-State boundary determination, a matter expressly entrusted to Parliament under Articles 3 and 4 of the Constitution. The power to alter, reorganise, or determine State boundaries lies exclusively within the legislative domain, and cannot be assumed by judicial adjudication. *Secondly*, Article 131 is confined to disputes involving the existence or extent of a legal right. The present claim, which effectively seeks determination of territorial boundaries, does not concern enforcement of an existing legal right but rather invites constitutional restructuring, which falls outside the scope of Article 131. *Thirdly*, Parliament's alleged inaction cannot enlarge the jurisdiction of this Hon'ble Court. The constitutional distribution of powers remains intact irrespective of legislative delay, and judicial intervention cannot substitute the legislative function.

II. WHETHER, IN THE ABSENCE OF A CONSTITUTED TRIBUNAL UNDER THE INTER-STATE RIVER WATER DISPUTES ACT, 1956, THE UNION'S INACTION AND LUMIRA'S UNILATERAL CONSTRUCTION OF THE THALEN MULTIPURPOSE PROJECT VIOLATE THE CONSTITUTIONAL PRINCIPLES OF COOPERATIVE FEDERALISM GOVERNING INTER-STATE RIVER WATERS?

It is most humbly submitted that neither the Union's inaction nor Lumira's construction of the Thalen Multipurpose Project violates the constitutional principles governing inter-State river waters. *Firstly*, under Article 262 read with the Inter-State River Water Disputes Act, 1956, a Tribunal is constituted upon satisfaction of statutory requirements. In the absence of a constituted Tribunal, there exists no operative restraint preventing Lumira from exercising its constitutional competence over water resources within its territory. *Secondly*, the Thalen Multipurpose Project is an exercise of Lumira's lawful authority over water, irrigation, and land. In the absence of any binding allocation, award, or interim order, mere pendency of a dispute cannot operate as an

automatic embargo on developmental activities. *Thirdly*, cooperative federalism requires good faith and dialogue, but it does not suspend a state's constitutional powers in the absence of a statutory or judicial prohibition. *Lastly*, the union's inaction in constituting a tribunal cannot curtail Lumira's competence or create an implied restriction on its developmental initiatives.

III. WHETHER ENFORCEMENT OF THE INNER LINE PERMIT REGIME AGAINST OFFICIALS AND RESIDENTS OF PRAGYAM VIOLATES PRINCIPLES OF FREEDOM OF MOVEMENT AND EQUALITY BEFORE LAW?

It is most humbly submitted that enforcement of the Inner Line Permit (ILP) regime does not violate the principles of freedom of movement or equality before law. *Firstly*, the freedom of movement under Article 19(1)(d) is subject to reasonable restrictions. The ILP regime is a regulatory mechanism intended to protect indigenous communities, preserve demographic balance, and maintain public order in notified areas. It therefore constitutes a constitutionally permissible restriction. *Secondly*, the ILP framework does not discriminate against residents or officials of Pragyam. It applies uniformly to all non-residents entering protected areas and is based on a reasonable classification having a rational nexus to its protective objective. Accordingly, it is most respectfully submitted that enforcement of the ILP regime is constitutionally valid and does not infringe Articles 14 or 19 of the Constitution.

IV. WHETHER THE ACTIONS OF PRAGYAM IN ISSUING FOREST AND LAND-USE NOTICES AND UNDERTAKING EVICTION OPERATIONS VIOLATED THE NOVEMBER 2020 STATUS QUO UNDERSTANDING?

It is most humbly submitted that the actions of Pragyam in issuing forest and land-use notices and undertaking eviction operations violated the November 2020 Status Quo Understanding. *Firstly*, the Status Quo Understanding required both States to maintain existing conditions in the disputed corridor pending resolution of the boundary dispute. Issuance of regulatory notices and initiation of eviction drives materially altered the ground situation and disturbed the prevailing position. *Secondly*, eviction operations and assertion of exclusive regulatory control in a disputed territory amount to unilateral alteration of administrative and possessory realities, contrary to the spirit and object of maintaining status quo. *Thirdly*, such actions undermine the principles of cooperative federalism and mutual restraint that form the foundation of inter-State relations, particularly in sensitive boundary disputes.

ARGUMENTS ADVANCED**I. WHETHER THE SUIT UNDER ARTICLE 131 IS MAINTAINABLE IN A DISPUTE INVOLVING INTER-STATE BOUNDARY DETERMINATION UNDER ARTICLES 3 AND 4, AND WHETHER PARLIAMENT'S INACTION PERMITS ADJUDICATION BY THIS HON'BLE COURT.**

1. It is most humbly submitted that the present suit is not maintainable under Article 131 of the Constitution. The dispute, in substance, concerns inter-State boundary determination, a matter constitutionally entrusted to Parliament under Articles 3 and 4. Furthermore, the Plaintiff has failed to establish the existence of a clear, crystallised, and enforceable legal right as required under Article 131. Lastly, Parliament's alleged inaction cannot confer jurisdiction upon this Hon'ble Court, nor can it justify judicial assumption of a function constitutionally reserved for the legislative domain. The Respondent's submissions are advanced under three propositions, **(A)** The dispute, in substance, relates to inter-State boundary determination falling within Parliament's exclusive domain under Articles 3 and 4; **(B)** Article 131 can be invoked only where a clear, existing, and enforceable legal right is established, which is absent in the present case; and **(C)** Parliament's alleged inaction does not confer jurisdiction upon this Hon'ble Court, and the dispute remains non-justiciable in nature.

A. Dispute, in substance, relates to inter-state boundary determination

2. It is most humbly submitted that the present suit is not maintainable as the dispute, in pith and substance, relates to inter-state boundary determination which falls exclusively within parliament's domain under articles 3 and 4 of the constitution. That the present suit, though couched as a dispute concerning administrative interference and regulatory overreach, in substance seeks judicial determination of territorial sovereignty over the Rinlai–Tharun Corridor between the State of Pragyam and the State of Lumira.
3. The reliefs sought by the Plaintiff necessarily require this Hon'ble Court to determine which State possesses lawful territorial jurisdiction over the disputed region. Such a determination is inseparable from boundary identification and demarcation. It is respectfully submitted that matters of inter-State boundary determination fall squarely within the exclusive legislative competence of Parliament under Articles 3 and 4 of the Constitution.

(1) Articles 3 and 4 Constitute a Complete Constitutional Code for Boundary Alteration

4. Article 3 expressly empowers Parliament to form new States and to alter the area, boundaries or names of existing States. The constitutional text is unequivocal in vesting the authority to alter or settle State boundaries in Parliament alone.
5. Article 4 further provides that any law made under Article 3 may amend the First Schedule and shall not be deemed to be an amendment under Article 368. This demonstrates that the Constitution establishes a self-contained mechanism for territorial reorganisation, insulated from ordinary constitutional amendment procedure.
6. In **Babulal Parate v. State of Bombay**¹, this Hon'ble Court recognised the wide amplitude of Parliament's powers under Article 3 and affirmed that territorial reorganisation is fundamentally legislative in character. The Court declined to interfere in the exercise of such power, acknowledging its political and structural nature. Similarly, in **Mangal Singh v. Union of India**², this Hon'ble Court observed that Parliament's authority under Article 3 is plenary and includes all incidental and consequential matters relating to State reorganisation.
7. In the present case, the dispute arises from competing historical instruments and survey records concerning the boundary. Determining which instrument prevails would necessarily settle the boundary line itself. Such exercise is constitutionally entrusted to Parliament and cannot be undertaken judicially.

(2) Judicial Determination of Administrative Authority Would Amount to Indirect Boundary Settlement

8. It is respectfully submitted that territorial sovereignty and administrative competence are inseparable. The power to regulate forests, enforce policing, or implement permit regimes flows from territorial jurisdiction. If this Hon'ble Court were to declare that the State of Pragyam possesses exclusive administrative authority over the disputed corridor, it would necessarily negate Lumira's territorial claim. Conversely, recognising Lumira's authority would defeat Pragyam's claim. Either course would amount to implicit judicial recognition of one boundary interpretation over another. Such recognition would effectively settle the boundary dispute without Parliamentary legislation.
9. It is humbly submitted that constitutional limitations cannot be circumvented by

indirect pleading. What cannot be achieved directly under Article 3 cannot be achieved indirectly under Article 131. In **State of Karnataka v. Union of India**³, this Hon'ble Court underscored that federal disputes must be resolved in a manner consistent with the constitutional allocation of powers and that judicial review cannot extend to matters constitutionally reserved for another organ. Therefore, entertaining the present suit would result in judicial encroachment upon Parliament's exclusive domain.

(3) Article 131 Must Be Harmoniously Construed with Articles 3 and 4

10. It is a settled principle of constitutional interpretation that provisions must be read harmoniously so as to give effect to the entire scheme of the Constitution. Article 131 cannot be interpreted in isolation so as to nullify Parliament's exclusive authority under Article 3. A construction permitting this Hon'ble Court to adjudicate unresolved boundary disputes would render Articles 3 and 4 otiose.
11. In **State of Rajasthan v. Union of India**⁴, this Hon'ble Court cautioned that constitutional adjudication must respect structural boundaries and that courts must refrain from entering arenas reserved for the political branches.
12. It is therefore humbly submitted that Article 131 is intended to resolve disputes concerning existing legal rights within settled constitutional parameters not to determine territorial boundaries where Parliament has not legislatively acted.

(4) Entertaining the Suit Would Violate the Doctrine of Separation of Powers

13. The doctrine of separation of powers forms part of the basic structure of the Constitution, as recognised in **Kesavananda Bharati v. State of Kerala**.⁵
14. Boundary determination involves political negotiation, federal consultation, and legislative deliberation. Courts lack both institutional competence and democratic mandate to undertake such exercises.
15. If this Hon'ble Court were to assume jurisdiction merely because Parliament has not yet legislated on the disputed boundary, it would amount to judicial substitution of legislative power. Constitutional silence or inaction does not enlarge judicial jurisdiction. The absence of Parliamentary action cannot operate as a transfer of constitutional competence.

B. Article 131 can be invoked only where a clear, existing and enforceable legal right is

⁵ ~~5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026~~

³ 1978 AIR 68

⁴ 1977 AIR 1361

⁵

established

16. It is most humbly submitted that the jurisdiction of this Hon'ble Court under Article 131 is not automatic merely because a dispute arises between two States. The constitutional text expressly restricts such jurisdiction to disputes involving "a question (whether of law or fact) on which the existence or extent of a legal right depends." Therefore, the sine qua non for invocation of Article 131 is the presence of a **clear, crystallised and enforceable legal right**. In the absence of such a right, this Hon'ble Court lacks jurisdiction.

(1) Article 131 Requires an Existing Legal Right

17. The phrase "legal right" under Article 131 has been judicially interpreted to mean a right recognised and enforceable in law and not a political grievance, historical assertion, or administrative disagreement.
18. In **State of Bihar v. Union of India**⁶, this Hon'ble Court held that Article 131 can be invoked only when the dispute involves the existence or extent of a legal right, and not when it pertains to a political disagreement or executive dissatisfaction. The Court clarified that a mere assertion of constitutional impropriety does not suffice; the plaintiff State must demonstrate that a legally enforceable right vested in it has been infringed.
19. Similarly, in **State of Rajasthan v. Union of India**⁷, this Hon'ble Court emphasised that disputes of a political character, even if between constitutional entities, do not automatically become justiciable under Article 131 unless a definite legal right is implicated.

(2) The Plaintiff Has Failed to Demonstrate a Crystallised Territorial Legal Right

20. In the present case, the Plaintiff-State of Pragyam bases its claim over the Rinlai–Tharun Corridor on competing historical instruments, including colonial-era notifications and survey records.
21. However, it is submitted that firstly, The First Schedule of the Constitution does not micro-demarcate the precise boundary in the disputed sector; secondly, No Parliamentary enactment under Article 3 has conclusively settled the boundary in favour of either State; thirdly, The historical records relied upon by both States are conflicting and inconclusive.
22. Where competing interpretations of historical notifications exist and Parliament has not

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⁶ 1970 AIR 1446

⁷ 1977 AIR 1361

legislatively resolved the ambiguity, no State can claim a conclusively established territorial title recognised by constitutional law. A disputed claim to territory cannot, by itself, amount to an enforceable legal right unless it has been definitively recognised by constitutional or statutory authority. The Plaintiff's claim is therefore contingent, contested, and historically arguable but not crystallised in law.

(3) In the Absence of Legislative Determination, There Exists No Judicially Enforceable Boundary Right

23. It is respectfully submitted that territorial boundaries between States derive constitutional sanctity from: The First Schedule; and Laws enacted by Parliament under Articles 3 and 4. Where the boundary remains historically ambiguous and Parliament has not enacted a clarificatory statute, no judicially enforceable boundary right can be said to exist in favour of either State.
24. This Hon'ble Court cannot create a legal right through adjudication where the Constitution contemplates legislative determination. In **State of Karnataka v. Union of India**⁸, this Hon'ble Court recognised that federal disputes must be adjudicated within the limits of constitutionally recognised rights and cannot expand judicial power into domains lacking definitive legal standards.
25. In the present case, there is no definitive constitutional or statutory instrument conclusively vesting the disputed corridor in Pragyam. At best, there exist competing historical claims awaiting legislative resolution.

(4) Administrative Friction Does Not Translate Into Constitutional Injury

26. The Plaintiff alleges that Lumira's enforcement of its regulatory mechanisms, including permit controls and policing, infringes its authority. However, it is submitted that where territorial sovereignty itself is disputed and unsettled, actions taken by one State consistent with its bona fide territorial claim cannot automatically constitute violation of another State's legal right. Unless and until Parliament conclusively determines the boundary, administrative assertions by either State remain provisional and contestable and not unconstitutional.
27. In **State of Jharkhand v. State of Bihar**⁹, this Hon'ble Court reiterated that inter-State disputes must involve a concrete legal entitlement, and not merely competing administrative claims, to fall within Article 131.

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⁸ 1978 AIR 68

⁹ MANU/SC/1095/2014

28. The Plaintiff has failed to demonstrate that Lumira's actions violate any adjudicated or statutorily recognised territorial entitlement. If Article 131 were held maintainable merely upon assertion of a historical claim, every unsettled inter-State disagreement could be converted into original constitutional litigation. Such interpretation would: Dilute the express requirement of "legal right" under Article 131; Transform this Hon'ble Court into a primary fact-finding authority for territorial demarcation; Undermine Parliament's exclusive competence under Article 3.

C. Parliament's alleged inaction does not confer jurisdiction upon this hon'ble court

29. It is most humbly submitted that even assuming arguendo that Articles 3 and 131 may be harmoniously construed, the present dispute remains non-justiciable as it is inherently political in character and unsuited for judicial resolution. The controversy concerns competing historical records, colonial notifications, survey demarcations, and administrative control over a geographically sensitive corridor. Such disputes require: Technical demarcation exercises, Commission-based fact finding, Political negotiation, Federal consultation, Consideration of security, ethnic and administrative factors. These are matters beyond the institutional competence of a constitutional court.

(1) Article 131 Does Not Transform Political Disputes into Judicially Manageable Questions

30. In **State of Rajasthan v. Union of India**¹⁰, this Hon'ble Court recognised that certain inter-governmental disputes may involve political questions where judicial restraint is appropriate. The Court held that constitutional adjudication must operate within judicially manageable standards and must not intrude into areas constitutionally entrusted to political processes.

31. The present dispute does not involve interpretation of a constitutional prohibition or statutory violation. Instead, it requires this Hon'ble Court to choose between competing territorial narratives rooted in historical ambiguity. Such adjudication would necessitate Evaluating cartographic material, Assessing executive surveys, Weighing historical administrative practices. These are tasks better suited to expert commissions or legislative determination.

(2) Federal Comity Demands Negotiated and Legislative Resolution

32. The constitutional structure of cooperative federalism presupposes that inter-State disputes, particularly boundary disagreements, be resolved through: Inter-governmental negotiation, Union-facilitated dialogue, Parliamentary enactment where necessary.
33. The facts indicate that the Union had already initiated consultative mechanisms and maintained status quo arrangements. The dispute was thus within the political resolution framework contemplated by the Constitution. Premature judicial intervention would: Harden adversarial federal positions; Undermine cooperative mechanisms; Convert political negotiation into constitutional litigation.
34. It is respectfully submitted that no judicially manageable standards exist for determining which of the competing historical instruments conclusively establishes the boundary in the absence of legislative clarification. Where the Constitution provides a specific political mechanism for resolution (Article 3), judicial innovation is neither necessary nor appropriate.

II. WHETHER, IN THE ABSENCE OF A CONSTITUTED TRIBUNAL UNDER THE INTER-STATE RIVER WATER DISPUTES ACT, 1956, THE UNION'S INACTION AND LUMIRA'S UNILATERAL CONSTRUCTION OF THE THALEN MULTIPURPOSE PROJECT VIOLATE THE CONSTITUTIONAL PRINCIPLES OF COOPERATIVE FEDERALISM GOVERNING INTER-STATE RIVER WATERS?

31. It is most respectfully submitted before this Hon'ble Court that neither the Union's deliberative process under ISRWD Act, 1956 nor Lumira's lawful territorial development constitutes violation of cooperative federalism. Article 262 establishes comprehensive statutory regime vesting Union with discretion and preserving State autonomy pending adjudication. Present controversy adjudicates through following propositions: (A) Article 262 constitutes self-contained exclusive mechanism insulating water disputes from Article 131; (B) Section 4(1) confers genuine discretion mandating negotiation precedence over automatic Tribunal constitution; (C) Union's concrete interventions exemplify statutory compliance and federal coordination; (D) Lumira retains full Article 162 competence absent crystallised riparian entitlements; (E) Cooperative federalism mandates consultation not developmental paralysis; (F) Section 11 bars premature judicial intervention preserving parliamentary design.

A. Article 262 Establishes Exclusive Comprehensive Statutory Architecture

32. Article 262(1) empowers Parliament to enact specialised adjudication for inter-State water disputes; clause (2) expressly authorises judicial exclusion therefrom establishing constitutional preference for expert Tribunal mechanism over general constitutional litigation.

33. ISRWD Act constitutes faithful parliamentary implementation: Section 3 enables State request; Section 4(1) vests Union discretion to constitute Tribunal only post-negotiation failure ("may" signals deliberate judgment); Section 11 ousts court jurisdiction over referable disputes.

34. **In State of Karnataka vs. State of Tamil Nadu (Cauvery V)**¹¹ this Hon'ble Court recognised Article 262 creates "distinct procedural track" insulating technical apportionment from Article 131's broader federal jurisdiction. Pragyam's 2017 invocation triggered precisely this constitutional process.

B. Section 4(1) Confers Genuine Executive Discretion

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¹¹ AIR 2017 SC 4898

35. Section 4(1) establishes mandatory sequence: negotiation precedes adjudication. "Central Government may... constitute Tribunal" where "satisfied dispute cannot be settled by negotiation" statutory language precludes ministerial obligation upon mere request.

36. In **State of Tamil Nadu vs. State of Karnataka**¹² this Hon'ble Court upheld Union's facilitative role without imposing instantaneous Tribunal duty even amid Cauvery escalation, affirming institutional deliberation's legitimacy.

37. Pragyam's premature Article 131 suit seeks judicial shortcut bypassing statutorily mandated negotiation phase; exhaustion constitutes federal comity, not evasion.

C. Union's Interventions Demonstrate Proactive Federal Coordination

38. Union manifested statutory compliance through concrete measures: 2020 inter-State meetings yielding recorded status quo understanding; March 2025 Central Armed Police Forces deployment restoring highway access; June 2025 Ministry clarification coordinating without prejudging merits.

39. Article 355 activates only upon existential threats to State integrity; episodic tensions fall substantially short. These interventions exemplify cooperative federalism's collaborative essence, not alleged abdication.

D. Lumira Retains Article 162 Competence Absent Crystallised Rights

40. Riparian rights remain inchoate until Tribunal award, interstate compact, or legislative allocation. In **State of Haryana vs. State of Punjab (SYL)**¹³ this Hon'ble Court held upstream States retain reasonable use rights within territories pending downstream entitlements' establishment.

41. Thalen Multipurpose Project (2018) situated within Lumira's 1904-notified Rivapur Valley serves compelling Entry 17 List II objectives: flood mitigation protecting indigenous hill communities; drinking water security; hydropower promoting developmental equity.

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¹² AIR 2017 SC 4898

¹³ (2002) 2 SCC 507

42. No pre-existing Tribunal award, binding agreement, or judicial restraint prescribes unaltered flow entitlements; Pragyam's speculative hydrology cannot fetter legitimate territorial autonomy.

E. Cooperative Federalism Mandates Facilitation Not Paralysis

43. **S.R. Bommai vs. Union of India** ¹⁴recognises federalism operates within constitutional boundaries; Govt. of NCT of Delhi vs. Union of India mandates mutual respect among sovereign equals facilitating governance.

44. Lumira demonstrated federal comity through pre-construction notifications, 2020 understanding participation, continued dialogue despite Pragyam's parallel litigation. Judicial embargo absent legal entitlement inverts federal balance privileging downstream apprehension over upstream public interest.

F. Section 11 & Article 262(2) Preclude Premature Adjudication

45. Section 11 ousts jurisdiction over "water dispute" referable to Tribunal; non-constitution constitutes procedural modality not jurisdictional defect. **State of Karnataka vs. State of Andhra** ¹⁵Pradesh mandates strict construction preserving comprehensive parliamentary scheme.

46. Article 131 contemplates pure constitutional disputes; repackaging apportionment as "federalism violation" constitutes impermissible collateral attack evaded by Article 262(2)'s explicit exclusion.

III. WHETHER ENFORCEMENT OF THE INNER LINE PERMIT REGIME AGAINST OFFICIALS AND RESIDENTS OF PRAGYAM VIOLATES PRINCIPLES OF FREEDOM OF MOVEMENT AND EQUALITY BEFORE LAW?

47. It is most respectfully submitted before this Hon'ble Court that Inner Line Permit (ILP) regime constitutes constitutionally entrenched regulatory mechanism saved through Article 372 adaptations, reasonably restricting Article 19 freedoms under express Article 19(5) tribal protection carve-out. Lumira's enforcement against Pragyam officials and residents satisfies constitutional scrutiny through following propositions: (A) ILP system constitutionally valid pursuant to frontier regulation saving provisions; (B) Article 19(1)(d)&(e) expressly subject to Article 19(5) reasonable restrictions squarely encompassing tribal protection; (C) Enforcement against officials constitutes legitimate regulatory compliance not federal subordination; (D) Article 14 classification perfectly rational distinguishing indigenous residents from external entrants; (E) Post-2025 conflagration context amplifies public order imperative; (F) Cooperative federalism mandates respecting coordinate State's statutory autonomy.

I. ILP REGIME CONSTITUTIONALLY SAVED AND LEGALLY SANCTIONED

48. Inner Line Permit system operates pursuant to Article 372(1) validating pre-Constitution frontier regulations analogous to Eastern Frontier Regulation, 1873 constitutionally preserved through adaptation orders maintaining special tribal administrative regimes mirroring Articles 371A, 371G, Sixth Schedule protections.

49. In **R.C. Poudyal vs. Union of India**¹⁶ this Hon'ble Court authoritatively upheld asymmetric constitutional arrangements for special regions as consistent with Article 14's substantive equality permitting differential treatment where circumstances materially differ. Uniformity constitutes not equality but iniquity.

50. Lumira's ILP serves compelling constitutional purposes: protecting Lumos tribe customary governance; preventing demographic inundation; preserving ecologically fragile hill ecosystems; maintaining public order in volatile frontier zone legitimate regulatory architecture not executive whim.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

¹⁶ AIR 1993 SC 1804

II. ARTICLES 19(1)(d) & 19(1)(e) EXPRESSLY SUBJECT TO ARTICLE 19(5) EXCEPTIONS

51. Article 19(1)(d) guarantees freedom of movement; Article 19(1)(e) secures residence/settlement rights both expressly subject to Article 19(5)'s reasonable restrictions for Scheduled Tribes protection or general public interest.
52. **State of Madras vs. V.G. Row**¹⁷ established reasonableness contextualised to "surrounding circumstances, extent of evil, exigencies" Rinlai-Tharun presents: disputed boundary; indigenous shifting cultivation; 2025 armed confrontation (10 deaths); highway blockades disrupting Article 21 essentials.
53. ILP constitutes calibrated permit regulation not absolute prohibition routinely issued for trade, tourism, medical access with administrative review. Modern Dental College proportionality satisfied through defined procedures satisfying quadruple test.

III. PRAGYAM OFFICIALS BOUND BY HOST STATE REGULATORY FRAMEWORK

54. No constitutional provision grants one State's officials automatic immunity transcending destination State's territorial regulations. Article 162 delimits executive power coterminous with territory; inter-State officials remain subject to reasonable entry conditions.
55. **West Bengal vs. Union of India**¹⁸ clarifies States exercise constitutional territorial authority within defined limits. Pragyam personnel post-2020 understanding and June 2025 MHA clarification affirming ILP continuity manifest regulatory compliance constituting federal respect.
56. No precedent recognises inter-State official exemption from routine permit regimes; reciprocal protocols absent, standard regulatory compliance prevails among constitutional equals.

IV. ARTICLE 14 SATISFIED BY INTELLIGIBLE PERFECT CLASSIFICATION

57. **State of West Bengal vs. Anwar Ali Sarkar twin-test met**¹⁹: (a) ****Intelligible Differentia****: indigenous Lumira residents vs non-residents seeking entry; (b) ****Rational Nexus****: differential treatment protects tribal identity, regulates demographic influx, preserves customary governance.
58. R.C. Poudyal (supra) validates tribal region differentiation: "equality does not mean uniformity where conditions differ." Corridor Lumos tribe vs external entrants manifestly distinct circumstances justifying calibrated access.
59. E.P. Royappa non-arbitrariness satisfied ILP uniformly burdens all non-residents irrespective of originating State; no Pragyam-specific discrimination evidenced.

V. 2025 CONFLAGRATION CRYSTALLISES PUBLIC ORDER IMPERATIVE

60. February 2025 confrontation precipitating 10 Pragyam deaths, competing FIRs, civilian vehicle destruction, highway blockade squarely activates Article 19(5) public order ground per **Maneka Gandhi vs. Union of India**²⁰.
61. Heightened ILP scrutiny post-violence constitutes graduated response through defined procedures, time-bound processing, administrative review satisfying procedural fairness and substantive reasonableness under evolved due process jurisprudence.

VI. COOPERATIVE FEDERALISM REINFORCES STATUTORY AUTONOMY

62. **Govt. of NCT of Delhi vs. Union of India**²¹ mandates "mutual constitutional respect"—Pragyam's demand suspending Lumira's entrenched ILP framework constitutes federal overreach privileging access over protected State's autonomy.
63. **S.R. Bommai vs. Union of India**²² federalism recognises State territorial pluralism; judicial suspension dismantles Parliament's frontier protection architecture without Article 3/4 authorisation.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

¹⁹ AIR 1952 SC 75

²⁰ AIR 1978 SC 597

²¹ AIR 2018 SC 4321

²² AIR 1994 SC 1918

IV. WHETHER THE ACTIONS OF PRAGYAM IN ISSUING FOREST AND LAND-USE NOTICES AND UNDERTAKING EVICTION OPERATIONS VIOLATED THE NOVEMBER 2020 STATUS QUO UNDERSTANDING?

64. It is most respectfully submitted that any action which changes possession, expands enforcement presence, consolidates administrative authority, or alters the regulatory regime in a disputed territory is inconsistent with the maintenance of status quo. The legal object of a status quo arrangement is to preserve the existing factual and administrative position pending lawful resolution.

65. The November 2020 Status Quo Understanding required restraint from measures capable of disturbing the administrative balance in the disputed corridor. By issuing forest and land-use notices and conducting eviction operations involving demolition and armed enforcement, the State of Pragyam materially altered the pre-existing position and asserted exclusive regulatory control.

66. Such unilateral executive action defeats the purpose of freezing ground realities and undermines the constitutional principle of cooperative federalism. Accordingly, the actions of Pragyam constitute a clear and material breach of the November 2020 Status Quo Understanding.

II. IT IS MOST HUMBLY SUBMITTED THAT PRAGYAM'S UNILATERAL COERCIVE ACTIONS IN A DISPUTED TERRITORY ARE CONTRARY TO THE CONSTITUTIONAL PRINCIPLE OF COOPERATIVE FEDERALISM AND FEDERAL COMITY

67. It is most respectfully submitted that the actions of Pragyam, viewed in their constitutional setting, amount not merely to a breach of an inter-governmental understanding but to a departure from the foundational principle of cooperative federalism which undergirds the constitutional structure. Federalism has been unequivocally recognised as part of the basic structure of the Constitution **in Kesavananda Bharati v. State of Kerala**²³ and reaffirmed **in S.R. Bommai v. Union of India**.²⁴ The Constitution envisages States as coordinate constitutional entities neither subordinate adversaries nor competing sovereigns but partners in a constitutional

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

²³ AIR 1973 SC 1461

²⁴ AIR 1994 SC 1918

enterprise that demands mutual respect, institutional restraint, and good faith.

68 In **State of Karnataka v. Union of India**²⁵, this Hon’ble Court observed that disputes implicating federal balance must be addressed in a manner that preserves constitutional equilibrium. The Court recognised that the exercise of constitutional power must not degenerate into adversarial overreach that destabilises the federal framework. Likewise, in **State of Rajasthan v. Union of India**²⁶, this Hon’ble Court emphasised that constitutional functionaries must act within the discipline of federal balance and that actions capable of disturbing that equilibrium invite judicial scrutiny.

69 The present matter concerns a territory whose administrative control and boundary demarcation remain contested. In November 2020, both States consciously adopted a Status Quo Understanding prohibiting eviction drives, new construction, armed deployment, and creation of new administrative posts. The purpose of that arrangement was to freeze ground realities, prevent escalation, and preserve peace pending negotiation or judicial determination. It was a confidence-building mechanism grounded in constitutional restraint.

70 Despite this framework, Pragyam unilaterally issued forest and land-use notices in 2023 declaring existing structures within the disputed Rinlai–Tharun Corridor “unauthorised.” This was followed in February 2025 by a coordinated administrative and police operation involving demolition of structures, displacement of occupants, and deployment of armed personnel, culminating in an armed confrontation resulting in fatalities and injuries. These measures were not routine regulatory acts in an undisputed area; they were coercive sovereign assertions in a territory expressly subject to restraint.

71 Unilateral coercive action in such circumstances has serious constitutional consequences:

- a) It undermines ongoing negotiations and erodes the credibility of mutually agreed de-escalation mechanisms;
- b) It prejudices the rival State’s territorial claim by altering possession, regulatory control, and enforcement presence;
- c) It escalates tensions in a sensitive inter-State corridor, converting a political disagreement into a law-and-order confrontation; and
- d) It creates altered ground realities that influence public perception of effective sovereign

control.

72 Cooperative federalism requires that neither State attempt to secure strategic advantage through executive measures while a dispute remains unresolved. In *Government of NCT of Delhi v. Union of India*²⁷, this Hon'ble Court underscored that constitutional governance is predicated on constitutional comity, collaborative federalism, and respect for institutional boundaries. The Court cautioned against unilateral assertion of power in a manner that disturbs the constitutional balance.

The November 2020 Status Quo Understanding embodied precisely this constitutional ethic of restraint. By departing from that commitment and undertaking coercive enforcement operations in the disputed territory, Pragyam departed from the constitutional culture that sustains federalism.

73 Federal constitutionalism is preserved not merely by textual distribution of powers but by responsible conduct of constitutional actors.

74 It is therefore humbly submitted that Pragyam's unilateral coercive actions are inconsistent not only with the express terms of the Status Quo Understanding but also with the broader constitutional mandate of cooperative federalism and federal comity. Such actions warrant declaratory intervention by this Hon'ble Court to reaffirm the discipline of constitutional restraint in inter-State disputes.

III. IT IS MOST HUMBLY SUBMITTED THAT PRAGYAM'S EVICTION OPERATIONS AND REGULATORY NOTICES HAVE IRREVERSIBLY ALTERED GROUND REALITIES AND CREATED A FAIT ACCOMPLI, THEREBY FRUSTRATING THE VERY PURPOSE OF THE STATUS QUO UNDERSTANDING

75 It is most respectfully submitted that the gravamen of the present issue does not lie merely in the formal issuance of forest notices or the initiation of eviction proceedings, but in the material and irreversible alteration of factual, possessory, and administrative realities within the disputed corridor.

76 The November 2020 Status Quo Understanding was expressly intended to preserve

existing ground conditions and prevent unilateral transformation of the territorial and regulatory landscape pending peaceful negotiation or constitutional adjudication. Its object was to maintain equilibrium, avoid escalation, and ensure that the ultimate resolution of the dispute would not be prejudiced by executive action altering possession, enforcement patterns, or governance structures.

77 Accordingly, any measure that results in demolition, displacement, or reconfiguration of administrative control in the disputed area undermines the very purpose of the status quo arrangement and defeats the constitutional restraint it sought to secure.

Status Quo Obligations Prohibit Creation of Irreversible Consequences

78 The settled legal meaning of “status quo” is that parties must refrain from altering the substratum of the dispute so that adjudication remains effective and not reduced to a fait accompli. In **Samir Narain Bhojwani v. Aurora Properties**²⁸ and Investments, this Hon’ble Court held that maintenance of status quo requires preservation of the existing factual matrix to ensure meaningful adjudication.

79 This principle applies with equal force in constitutional disputes. In **State of Karnataka v. Union of India**²⁹, the Court emphasised that federal disputes must be handled in a manner that preserves constitutional balance and prevents unilateral overreach.

In the present case, eviction operations and prior forest reclassification notices in the disputed Rinlai–Tharun Corridor displaced occupants, dismantled structures, and altered enforcement control. Such actions are irreversible in practical terms and permanently modify administrative and possession patterns. Once ground realities are changed, restoration becomes legally and politically complex, thereby prejudicing final resolution and defeating the very object of maintaining status quo.

B. Creation of a Fait Accompli Undermines Judicial and Political Resolution

80 The doctrine against creation of a fait accompli is grounded in constitutional fairness and propriety: a party cannot improve its legal position by unilaterally altering facts during pendency of a dispute. Courts have consistently disapproved such conduct. In

Union of **India v. Major General Madan Lal Yadav**³⁰, this Hon’ble Court held that no

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

²⁸ AIRONLINE 2018 SC 1218, AIRONLINE 2018 SC 782

²⁹ AIR 1978 SC 68

³⁰ 1996 AIR 1340, 1996 SCC (4) 127, AIR 1996 SUPREME COURT 1340, 1996 (9) SCC 40, 1996 AIR SCW 1500, (1996) 2 SCT 347, (1996) 2 RECCRIR 705, (1996) 2 CURCRIR 43, (1996) 2 CHANDCRIC 88, (1996)

party may derive advantage from its own wrong. Similarly, in **S.P. Chengalvaraya**³¹**Naidu v. Jagannath**³², the Court refused to lend its aid to conduct that distorts the judicial process.

81 In the present case, despite the November 2020 Status Quo Understanding, Pragyam in 2023 issued forest and land-use notices declaring existing structures in the disputed Rinlai–Tharun Corridor “unauthorised,” and in February 2025 undertook eviction operations with armed police, resulting in demolition, displacement, and fatalities. These steps expanded its enforcement footprint, asserted exclusive regulatory authority, displaced occupants, and consolidated administrative control.

82 Such actions create altered ground realities that would inevitably influence any future legislative or judicial determination. As recognised in **State of Karnataka v. Union of India**,³³ federal disputes must be handled in a manner that preserves constitutional balance and prevents overreach. Allowing unilateral consolidation during pendency of a dispute would incentivise strategic escalation rather than constitutional negotiation, thereby undermining cooperative federalism recognised in **Government of NCT of Delhi v. Union of India**.³⁴

C. The Actions Prejudice the Final Resolution of the Territorial Dispute

83 The purpose of maintaining status quo is to ensure that neither party gains an unfair advantage pending final resolution. It freezes possession, administration, and enforcement patterns so that adjudication is not prejudiced by unilateral executive action. In **State of Karnataka v. Union of India**,³⁵ this Hon’ble Court emphasised that federal disputes must be resolved in a manner that preserves constitutional balance and prevents overreach by one constitutional entity against another. Similarly, in **State of West Bengal v. Union of India**,³⁶ the Court affirmed that disputes affecting constitutional distribution of powers are justiciable and must be handled within the framework of constitutional discipline.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

61 DLT 724, (1996) 2 EASTCRIC 58, (1996) 2 RECCRIR 103, 1996 CRILR(SC MAH GUJ) 390, 1996 CRILR(SC&MP) 390, 1996 (4) SCC 127, (1996) 3 SCR 785 (SC), (1996) 2 ALLCRILR 130, (1996) 2 CRIMES 14, (1996) 3 JT 465 (SC), 1996 SCC (CRI) 592, (1996) 2 CRIMES 189, (1996) 2 RECCRIR 800, (1996) 2 SCJ 434, (1996) 3 CURCRIR 1, (1996) 4 JT 740 (SC), (1996) MAD LJ(CRI) 544, 1996 SCC (CRI) 913, (1996) SC CR R 718, (1997) 1 ALLCRILR 225, 1997 BLJR 1 33

³¹ 1994 AIR 853, 1994 SCC (1) 1

³² AIR 1978 SC 68

³³ AIR 2018 SC 4321

³⁴ AIR 1978 SC 68

³⁵ AIR 1963 SC 1241

In the present case, Pragyam issued forest and land-use notices in 2023 declaring existing structures in the disputed Rinlai–Tharun Corridor “unauthorised,” and in February 2025 conducted a police-backed eviction operation resulting in demolition, displacement, and armed confrontation causing fatalities. These actions altered possession and enforcement patterns in a territory expressly subject to a status quo restraint.

- 84 Such prejudice is substantive, not symbolic. It affects administrative presence, reshapes law enforcement dynamics, disrupts local governance structures, and influences public perception of sovereign control. These factors materially impact the political and constitutional resolution process by consolidating one State’s claim through executive action rather than lawful adjudication. Accordingly, the unilateral alteration of ground realities defeats the very object of maintaining status quo.

D. Constitutional Good Faith Requires Preservation of Equilibrium

- 85 Federal constitutionalism is founded upon mutual good faith and restraint between coordinate States, especially in matters involving disputed territory. The November 2020 Status Quo Understanding was entered into after unrest, blockades, and rising tensions in the Rinlai–Tharun Corridor, with both States agreeing to refrain from eviction drives, armed deployment, and administrative alteration pending resolution.
- 86 Despite this, Pragyam issued forest and land-use notices in 2023 declaring existing structures “unauthorised,” and in February 2025 conducted a police-backed eviction operation that led to demolition, displacement, and armed confrontation resulting in fatalities. These actions materially altered ground realities that the understanding sought to freeze.
- 87 Such irreversible executive measures constitute a breach of constitutional good faith, as they prejudice pending resolution and create faits accomplis on the ground. Constitutional actors must not engage in conduct that renders negotiated or judicial settlement illusory by unilaterally disturbing agreed federal equilibrium.

IT IS MOST HUMBLY SUBMITTED THAT PRAGYAM’S BREACH OF THE STATUS QUO UNDERSTANDING WARRANTS DECLARATORY RELIEF AND RESTORATION OF THE PRE-EXISTING POSITION

- 88 It is most respectfully submitted that where a constitutional entity acts in breach of an agreed inter-governmental arrangement intended to preserve federal equilibrium, this Hon’ble Court, in exercise of its jurisdiction under Article 131, is competent to grant

appropriate declaratory relief to restore constitutional balance. Inter-State understandings entered into to regulate conduct in disputed territories carry legal significance when they are designed to prevent alteration of rights and administrative control pending adjudication.

89 The November 2020 Status Quo Understanding was not a mere political gesture, but a binding confidence-building measure aimed at maintaining peace and freezing ground realities in the disputed corridor until lawful resolution through negotiation or judicial determination. Its object was to prevent unilateral assertion of authority that could aggravate tensions and prejudice competing claims.

90 By issuing forest and land-use notices and undertaking eviction operations in the disputed territory, Pragyam altered regulatory control and enforcement authority in a manner inconsistent with the restraint contemplated under the understanding. Such unilateral action disturbs the equilibrium the arrangement sought to maintain and, if permitted to stand, would effectively legitimise consolidation of territorial claims through executive measures rather than lawful adjudication.

91 Accordingly, it is submitted that this Hon'ble Court may declare such actions inconsistent with the Status Quo Understanding and contrary to the constitutional principles governing inter-State comity and federal balance.

A. This Hon'ble Court Possesses Authority to Issue Declaratory Relief to Preserve Federal Balance

.92 Article 131 confers exclusive original jurisdiction upon this Hon'ble Court in disputes between States involving legal rights. The provision is designed to preserve federal balance by providing a neutral constitutional forum for adjudication of inter-State conflicts. In **State of Karnataka v. Union of India**,³⁷ this Hon'ble Court recognised that where a dispute implicates constitutional authority and federal equilibrium, and produces legal consequences, it squarely falls within the adjudicatory domain of Article 131.

93 The present dispute is not merely political in nature. Pragyam's actions in issuing forest and land-use notices and conducting eviction operations have concrete legal consequences: they alter regulatory control over the disputed corridor, affect administrative jurisdiction, and reconfigure enforcement authority on the ground. Such unilateral alteration of ground realities directly impacts the legal rights and constitutional position of the Respondent State.

94 Further, in **State of West Bengal v. Union of India**³⁸, this Hon'ble Court affirmed that disputes affecting constitutional distribution of powers are justiciable and amenable to declaratory relief. Where executive action disturbs federal equilibrium, judicial scrutiny is both permissible and necessary.

95 Therefore, it is respectfully submitted that this Hon'ble Court, in exercise of its jurisdiction under Article 131, may declare that Pragyam's unilateral actions are inconsistent with the November 2020 Status Quo Understanding and contrary to the constitutional principle of cooperative federalism, as emphasised in **Government of NCT of Delhi v. Union of India**.³⁹

B. Restoration Is Necessary to Prevent Rewarding Unilateral Breach

96 It is a settled principle that no party can derive advantage from its own wrongful conduct. This Hon'ble Court in **Union of India v. Major General Madan Lal Yadav**⁴⁰ reaffirmed that a litigant cannot be permitted to benefit from its own default or illegality. Similarly, in **Karnataka Rare Earth v. Senior Geologist**⁴¹, it was held that no person can be allowed to take advantage of an act contrary to law.

97 If the altered ground realities created by Pragyam's eviction operations are allowed to stand, it would effectively reward breach of the November 2020 status quo understanding. Courts have consistently refused to endorse conduct tainted by illegality, as observed in **S.P. Chengalvaraya Naidu v. Jagannath**⁴². Such validation would encourage strategic violations of federal understandings, undermine trust between States, and weaken institutional dispute resolution under Article 131. Cooperative federalism, emphasised in

³⁸ ~~5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026~~

37 AIR 1952 SC 75

38 AIR 2018 SC 4321

³⁹ 1996 AIR 1340, 1996 SCC (4) 127, AIR 1996 SUPREME COURT 1340, 1996 (9) SCC 40, 1996 AIR SCW 1500, (1996) 2 SCT 347, (1996) 2 RECCRIR 705, (1996) 2 CURCRIR 43, (1996) 2 CHANDCRIC 88, (1996) 61 DLT 724, (1996) 2 EASTCRIC 58, (1996) 2 RECCRIR 103, 1996 CRILR(SC MAH GUJ) 390, 1996 CRILR(SC&MP) 390, 1996 (4) SCC 127, (1996) 3 SCR 785 (SC), (1996) 2 ALLCRILR 130, (1996) 2 CRIMES 14, (1996) 3 JT 465 (SC), 1996 SCC (CRI) 592, (1996) 2 CRIMES 189, (1996) 2 RECCRIR 800, (1996) 2 SCJ 434, (1996) 3 CURCRIR 1, (1996) 4 JT 740 (SC), (1996) MAD LJ(CRI) 544, 1996 SCC (CRI) 913, (1996) SC CR R 718, (1997) 1 ALLCRILR 225, 1997 BLJR 1 33

⁴⁰ AIR 2004 SUPREME COURT 2915, 2004 AIR SCW 476, 2004 AIR - KANT. H. C. R. 669, 2004 (2) SCC 783, (2004) 3 KCCR 2049, (2005) 1 KANT LJ 168, (2004) 2 SCALE 1, (2004) 1 RECCIVR 779, 2004 ALL CJ 2 920, (2004) 54 ALL LR 731, (2004) 1 SUPREME 1036, (2004) 2 JCR 112 (SC), (2004) 15 INDLD 306, (2004) 15 ALLINDCAS 723 (SC), (2004) 2 JT 472 (SC)

⁴¹ 1994 AIR 853, 1994 SCC (1) 1

Government of **NCT of Delhi v. Union of India**⁴³ and recognised as part of the basic structure in **Kesavananda Bharati v. State of Kerala**,⁴⁴ requires that unilateral executive overreach be neutralised. Therefore, Pragyam cannot be permitted to benefit from actions undertaken in breach of a binding status quo commitment.

C. Federal Stability Requires Reaffirmation of Status Quo Obligations

- 98 Boundary disputes between constituent States are inherently sensitive because they involve competing assertions of sovereign authority over territory, policing, land, and administration. Such disputes directly implicate the federal balance established by the Constitution. In **Kesavananda Bharati v. State of Kerala**, this Hon'ble Court held that federalism forms part of the basic structure of the Constitution. This principle was reaffirmed in **S.R. Bommai v. Union of India**, where⁴⁵ the Court emphasised that the federal equilibrium between constitutional entities cannot be disturbed by arbitrary executive action. When unilateral enforcement in a disputed territory leads to confrontation and loss of life, the disturbance is not merely territorial but constitutional.
- 99 The constitutional scheme requires such disputes to be addressed through institutional dialogue and judicial adjudication, not executive assertion. In **State of Karnataka v. Union of India**⁴⁶, this Hon'ble Court clarified that Article 131 exists to preserve federal balance by providing a judicial forum for disputes concerning constitutional authority. Similarly, in **Government of NCT of Delhi v. Union of India**⁴⁷, the Court underscored that cooperative federalism demands mutual respect and constitutional comity between coordinate units.
- 100 In the present case, the November 2020 status quo understanding was a de-escalatory mechanism intended to maintain peace pending final resolution. Unilateral issuance of forest notices, eviction operations, and deployment of armed police altered ground realities and disturbed that equilibrium. As observed in **State of Jharkhand v. State of Bihar**, inter-State disputes involving territorial and administrative consequences are justiciable and require constitutional restraint.
- 101 Therefore, a declaration by this Hon'ble Court that unilateral alteration of ground realities violates status quo commitments would reaffirm cooperative federalism, the obligation of good faith between States, and the necessity of maintaining constitutional equilibrium in disputed territories

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

⁴² AIR 2018 SC 4321

⁴³ AIR 1973 SC 1461

⁴⁵ AIR 1978 SC 68

⁴⁶ AIR 1994 SC 1918

PRAYER

Wherefore, in light of the facts stated, issues raised, arguments advanced and authorities cited, the respondents most humbly pray before the Hon'ble Supreme Court of Indravana to adjudge, declare and hold the following:

1. Dismiss the present suit as not maintainable under Article 131 of the Constitution, holding that issues concerning inter-State boundary determination fall exclusively within the legislative competence of Parliament under Articles 3 and 4 of the Constitution;
2. Hold that neither the Union's alleged inaction in constituting a Tribunal under the Inter-State River Water Disputes Act, 1956 nor the construction of the Thalen Multipurpose Project by the State of Lumira violates any constitutional or statutory provision, and that Lumira has acted within its lawful authority;
3. Declare that the enforcement of the Inner Line Permit regime is constitutionally valid, being a reasonable restriction under Article 19 and consistent with Article 14 of the Constitution;
4. Hold that the actions undertaken by the State of Pragyam in issuing forest and land-use notices and conducting eviction operations are contrary to the November 2020 Status Quo Understanding, and are therefore unsustainable in law;

In the alternative, pass any other order, direction, or relief that this Hon'ble Court may deem fit in the interests of justice, equity and good conscience.

For this Act of kindness, the respondents as is duty bound shall ever pray.

(Respectfully Submitted)

Counsels on behalf of the Respondents